

Order Granting Record Correction

Rule 16(b) ruling

On March 5, 2025, upon consideration of A.R.M.’s motion, the respondent’s response, and the parties’ March 3 stipulation, the court grants correction under Federal Rule of Appellate Procedure 16(b). The records office completed the stipulated correction on March 3, restoring the unchanged eighteen-page P-7 declaration at AR33–AR50, verifying the stated SHA-256, preserving all later labels, and transmitting the itemized corrected index and certification. The court approves that completed correction and deems the March 3 certification filed.

The February 18 transmission remains available as the historical initial production. Correction is approved because the hearing record and agency decisions establish that P-7 was admitted and before the agency, while the initial transmission omitted it. This order does not admit new evidence, modify P-7, or determine its credibility or weight. The court retains the distinction between recognizing a completed correction of a preexisting omission and adding a document created after the agency order.

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Limits, verification, and disposition

Disposition of the correction motion is GRANTED. The March 3 verification records a second-clerk comparison of the P-7 file name, eighteen-page count, digest, placement at AR33–AR50, continuity through the last agency page, and agreement between the corrected index and all admitted-exhibit receipt rows. It reports no mismatch or substituted file. The corrected certification bears its March 3 date and preserves the initial index as a distinct historical filing.

The order does not resolve the pending supplementation motion, the CAT merits, the adequacy of the agency’s analysis, or the ultimate petition. It makes no finding that any statement in P-7 is true. Its effect is limited to ensuring that the court reviews the same admitted material that was before the immigration judge and Board. The clerk shall serve the order on both parties on March 5, 2025.